



DACA • DEFERRED ACTION FOR CHILDHOOD ARRIVALS

DACA Application Kit

Deferred Action for Childhood Arrivals — Initial & Renewal

Complete guide to DACA — covers initial eligibility, renewal process, advance parole, work authorization, current legal status, and risk considerations for first-time and renewing applicants.

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WHAT'S INSIDE THIS KIT:

✓ Current DACA legal status ✓ Initial vs renewal eligibility ✓ Step-by-step application ✓ Required documents ✓ Advance Parole travel guide ✓ Renewal timing (120-150 days) ✓ Fees & timeline ✓ Risks and considerations ✓ After approval — next steps ✓ Pathway to other status

All USCIS forms: uscis.gov/forms | Tools: immigrationiq.us

1. What is DACA & Current Status

Deferred Action for Childhood Arrivals (DACA) is a program announced in June 2012 that allows certain young people who came to the U.S. as children to receive a 2-year, renewable deferment from removal and become eligible for work authorization. DACA does NOT grant lawful status, is not a path to citizenship by itself, and does not change immigration status.

■ **DACA is in active litigation. As of recent rulings, USCIS continues to accept and process DACA RENEWALS but is generally NOT processing new initial DACA applications. Verify current status at uscis.gov/DACA before applying.**

TIP: If you are a current DACA holder, you can still renew. If you are a first-time applicant, USCIS may accept your filing but not adjudicate it. Consult an attorney before paying fees on an initial application.

2. Initial DACA Eligibility

All seven criteria must be met as of the date you file:

- 1. Age at Entry:** Were under 16 years old when you came to the United States.
- 2. Continuous Residence:** Have continuously resided in the U.S. since June 15, 2007.
- 3. Physical Presence:** Were physically present in the U.S. on June 15, 2012, AND on the date you file your DACA request.
- 4. Lack of Status:** Had no lawful immigration status on June 15, 2012 (entered without inspection, or your lawful status expired before that date).
- 5. Education or Military:** Are currently in school, graduated/got a GED, or were honorably discharged from U.S. Armed Forces.
- 6. Age at Filing:** Were at least 15 years old when filing (unless in removal proceedings).
- 7. Criminal History:** Have not been convicted of: a felony, a significant misdemeanor, three or more misdemeanors, OR pose a threat to national security or public safety.

3. DACA Renewal Eligibility

To renew, all of the following must be true since your last DACA approval:

- Did not depart the U.S. on or after August 15, 2012, without Advance Parole
- Have continuously resided in the U.S. since you submitted your most recent DACA request
- Have not been convicted of a felony, significant misdemeanor, or 3+ misdemeanors
- Do not otherwise pose a threat to national security or public safety

■ **Renewal applications should be submitted 120-150 days BEFORE your current DACA expires. Filing too early may result in rejection; filing late can cause a gap in work authorization.**

4. Step-by-Step Application Process

- 1. Complete Form I-821D:** Consideration of Deferred Action for Childhood Arrivals. Indicate Initial or Renewal in Part 1.
- 2. Complete Form I-765:** Application for Employment Authorization. Use eligibility code (c)(33) for DACA.
- 3. Complete Form I-765WS:** Worksheet — establishes economic necessity for work authorization (required).
- 4. Gather Supporting Evidence:** Identity, age, entry, continuous residence, education/military, and absence of criminal history.
- 5. Pay the Filing Fee:** \$555 total (\$85 biometric services + \$470 employment authorization).
- 6. Mail or File Online:** Send to designated USCIS Lockbox or file online via my.uscis.gov.
- 7. Attend Biometrics:** USCIS schedules fingerprinting and photo at a local Application Support Center (ASC).
- 8. Receive Decision:** Approval = USCIS sends DACA approval notice + Employment Authorization Document (EAD) valid for 2 years.

5. Required Documents

Identity & Age

- Passport or national identity document with photo
- Birth certificate with photo ID
- School ID with photo, military ID, or any state ID

Entry Before Age 16

- I-94 Arrival/Departure record, passport entry stamps
- Travel records, school records showing arrival
- Religious records, medical records from before age 16

Continuous Residence Since June 15, 2007

- School records (transcripts, report cards, attendance records)
- Medical records, hospital records, vaccination records
- Employment records, W-2s, pay stubs
- Bank records, utility bills, lease agreements
- Tax returns, IRS transcripts
- Religious records (baptism, confirmation, attendance)
- Social organization records (sports leagues, clubs)

Education or Military

- Enrolled: school registration, current transcripts, attendance letter
- Graduated: high school diploma, GED certificate, college diploma
- Military: DD-214 with honorable discharge

TIP: Submit MULTIPLE pieces of evidence per year if possible. The more comprehensive your documentation, the stronger your case. Organize chronologically with a table of contents.

6. Advance Parole (International Travel)

DACA recipients can apply for permission to travel abroad for humanitarian, educational, or employment purposes. File Form I-131 with required fee. DO NOT travel without approval.

Approved Reasons for Travel

- HUMANITARIAN: Visit a sick relative, attend funeral, obtain medical treatment unavailable in U.S.
- EDUCATIONAL: Study abroad programs, academic research, conferences
- EMPLOYMENT: Overseas assignments, training, client meetings

Why Advance Parole Matters

- Allows lawful re-entry to the U.S.
 - Re-entry counts as a lawful 'admission' — may open paths to adjustment of status (e.g., marriage to a U.S. citizen)
 - Without it, leaving the U.S. ends DACA and you cannot return
- **Travel on Advance Parole is at YOUR RISK. CBP makes the final admission decision. If you have any criminal history, prior immigration violations, or removal orders, consult an immigration attorney BEFORE traveling.**

7. Fees & Timeline

Item	Cost / Time
I-821D + I-765 + I-765WS combined	\$555 (no fee waivers, very limited exceptions)
I-131 Advance Parole (separate)	\$630
Initial DACA application timeline	Variable — currently not adjudicated
Renewal DACA timeline	3-5 months typically
DACA validity period	2 years from approval
Recommended renewal filing	120-150 days before current expires
Biometrics scheduled	4-8 weeks after filing

8. Risks and Considerations

Disclosure Risk

DACA applications require disclosing your name, address, family information, and any criminal history to DHS. The information CAN, in certain circumstances, be shared with ICE. Weigh this risk if you have undocumented family members, prior removal orders, or any criminal issues.

Travel Without Advance Parole

Leaving the U.S. without Advance Parole automatically **TERMINATES** your DACA. You cannot return with DACA documents and may trigger 3-year or 10-year bars to re-entry.

Status Changes

- If charged with ANY crime, contact an attorney IMMEDIATELY before pleading
- Even minor convictions can disqualify you from DACA renewal
- Notify USCIS of address changes within 10 days (Form AR-11)

■ DO NOT use DACA approval to file false statements or misrepresent your situation. Fraud terminates DACA and can lead to removal proceedings.

9. After DACA Approval — Next Steps

- Apply for a Social Security Number (SSN) — visit your local SSA office with your EAD
- Apply for a state driver's license or state ID
- File federal and state tax returns each year (use ITIN until SSN issued)
- Open bank accounts, build credit history
- Pursue higher education with state/private financial aid (federal aid not available)
- Track your DACA expiration date and start renewal 150 days before
- Explore other immigration paths (marriage to U.S. citizen, employer sponsorship, U-visa, etc.)

TIP: DACA is not a permanent solution. Use the time and stability it provides to build a longer-term immigration plan. Many DACA recipients have successfully transitioned to permanent residence through marriage, employer sponsorship, or other relief.

YOUR IMMIGRATIONIQ TOOLKIT	
→ AI Chat Assistant	immigrationiq.us/chat
→ Case Status Tracker	immigrationiq.us/case-tracker
→ Visa Bulletin Dashboard	immigrationiq.us/visa-bulletin
→ USCIS Fee Calculator	immigrationiq.us/fee-calculator
→ Find Immigration Lawyers	immigrationiq.us/lawyers
→ Free Legal Aid Resources	immigrationiq.us/lawyers (Free Legal Aid tab)



ImmigrationIQ — immigrationiq.us

For informational purposes only. NOT legal advice. Laws change frequently. Verify at uscis.gov. Consult a licensed immigration attorney for your specific situation.